

Vehicle Impoundment Support Unit (VISU)

Prosecutions Guidance Note

Appeal Rights (Hardship) and Not Abandoned Applications

The OIC, Vehicle Impoundment Support Unit (VISU), has noted several instances of Magistrates issuing court orders that contravene legislated *conditional* appeal rights pursuant to Part 6A of the Road Safety Act (RSA) – Impoundment, immobilisation and forfeiture of motor vehicles.

This guidance note is prepared to assist with prosecuting applications made to the Magistrates' Court by interested parties seeking early release of vehicles, fee waivers and/or applications that a motor vehicle is not abandoned.

It should be noted that the Senior Officer VISU (S/Sgt and Inspector) is the delegate to the Chief Commissioner of Police for the purpose of exercising these provisions.

The applicable legislation is summarised on the following pages.

If there are any concerns regarding an application in progress, VISU can be contacted during business hours via the following options:

- Phone 8480 1604 (direct line to speak with a VISU Sergeant)
- For advice, email either PBEAs:
impound.support@police.vic.gov.au, or vehicle.impound@police.vic.gov.au
- All hardship application notifications should be emailed to:
VI-1255-MGR@police.vic.gov.au

Main Points

Returning motor vehicles to recidivist offenders poses serious concerns for public safety and a risk of significant harm to road users and should be contested at every opportunity.

'Hardship' Applications (RSA 84O):

- **Applications without notice must be adjourned.** The applicant must give 7 days' notice of any hardship application to CCP (VISU), including the court venue and hearing date. If the prosecutor has not received a rebuttal advice from VISU for the hearing, then it can be assumed that the required notice has not been given. The prosecutor is requested to seek an adjournment of 10 days, then the matter can be referred to VISU to prepare a rebuttal advice.
- Hardship applications can be made by any person whose interests are substantially affected by the impoundment or immobilisation of the motor vehicle, only while the motor vehicle is impounded or immobilised.
- If the offender has a driver's licence that is suspended, or is disqualified, for a period exceeding the impoundment, then the Magistrates' Court must not consider any exceptional hardship caused to the offender.
 - There are instances in which third parties apply to the Court on behalf of offenders attempting to circumvent this restriction. The issue of whether these applications proceed is discretionary; the focus needs to remain on what the

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relationship is between the offender and the applicant, and what access the offender will have to the vehicle if it is released to the applicant (eg. controlling behaviours). The VISU rebuttal advice will inform prosecutors of intelligence indicating third party applicants are subjected to controlling behaviours and/or coercive associations.

- Exceptional circumstances cannot be based on 'employment' grounds unless it is essential (not merely convenient) and no other transport options are available.
- Hardship applications cannot be made after the vehicle has vested in the Crown because the vehicle is no longer 'impounded' or 'immobilised'.
- Vested motor vehicles that have been 'disposed' cannot be recovered. A vehicle is disposed once it has left the VISU facility after being authorised for disposal by the Senior Officer (Hardship applications are often received after vehicles have already been disposed, weeks after the motor vehicle has been deemed abandoned by the legislation).

'Not Abandoned' Applications (RSA 84ZQAD):

- **Applications without notice must be adjourned.** The applicant must give notice of the application to CCP (VISU), including the court venue and hearing date. If the prosecutor has not received a rebuttal advice from VISU for the hearing, then it can be assumed that the required notice has not been given. The prosecutor is requested to seek an adjournment of 10 days, then the matter can be referred to VISU to prepare a rebuttal advice.
- Applications that a vehicle is not abandoned can be made by any person substantially affected by the proposed sale or disposal of a motor vehicle, only if a deeming notice has been given indicating an intention to declare the vehicle abandoned. These notices are mailed by VISU to the most recent registered operator and any known interested party.
- To make an order, the Court must be satisfied the applicant has not 'in fact' abandoned the motor vehicle and has genuine intention to collect the motor vehicle within two months.
- If an order that a vehicle is not abandoned is issued by the Court for a motor vehicle that has vested but not yet disposed, then VISU will return its status to being 'impounded' or 'immobilised' (this cannot occur if the vehicle has already been disposed).

Summary of Disposal Provisions

Impounded motor vehicles can be disposed of in three ways:

1. **84ZQ – Sale or Disposal of motor vehicles** if not collected or released 2 months or more after the date on which it became available for collection.
 - 84ZQ(3) requires the criminal case for the impoundment relevant offence to be finalised.

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- 84ZQA requires a notice of intention to sell or dispose to be served on the driver and registered operator.
- 84ZQ(4) states 14 days after the notice is given, **the motor vehicle and any items or things left in or on it vest absolutely in the Crown, free from all other interests, right, titles or claims in or to ownership or possession.**
- No 'appeal rights' to 84ZQ provisions.

2. 84ZQAB – Sale or disposal of motor vehicles and items deemed abandoned

(This section is subject to Appeal Rights – S84O and 84ZQAD)

This is the most common option exercised by VISU because uncollected vehicles can be disposed before the criminal case is finalised which significantly reduces impoundment program costs and provides capacity (turnover) for intake of vehicles.

- 84ZQAB(1) states that a motor vehicle (and anything within) can be disposed of if it remains uncollected and is deemed to be abandoned pursuant to 84ZQAB(2).
- 84ZQAB(2) requires notice to be given (84ZQAC) on the driver, the registered operator and any interested party. If the vehicle remains uncollected (including inability to pay impoundment fees) after 14 days it is deemed to be abandoned.
- 84ZQAB(3) states If a motor vehicle is deemed abandoned under subsection (2), (2A) or 2C), **the motor vehicle and any item or thing left in it or on it vest absolutely in the Crown free from all other interests, rights, titles or claims in or to ownership or possession.**

Regarding 84ZQAB disposal only:

- 84ZQAD provides for an interested party to apply for a court order that a motor vehicle is not abandoned.

3. 84ZT – Disposal of Vehicle Subject to a Disposal Order

This section is rarely used - 84ZQAB disposal is preferred.

Please Note: Additionally, 84C(5) states that a motor vehicle is taken to be disposed of if given to a police officer, member of public service or a public sector body for use carrying out that person or body's functions or duties, including for training purposes.

Appeal Rights

Road Safety Act 1986, Section 84O – Applications Claiming Hardship

- 84O(1) A person whose interests are substantially affected by the impoundment or immobilisation may apply for immediate release of the motor vehicle on the grounds that it is causing, or will cause exceptional hardship to the applicant or any other person.
- 84O(2) Hardship applications can only be made while the vehicle is in fact 'impounded' or 'immobilised' (including when the impoundment or immobilisation continues for longer than the 30 day designated period, as a result of non-payment of the designated costs (until the vesting date). Therefore, hardship applications cannot be made after the motor vehicle has vested in the Crown, unless the Court determines that the vehicle is not abandoned beforehand (84ZQAD application required first).

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- **84O(2A) The applicant must provide 7 days' notice of any hardship application to VISU, including notice of the court venue and hearing date.**
- 84O(2B) The application must state the grounds for the claim of exceptional hardship.
- 84O(2C) The Magistrates' Court must not deal with or determine an application unless it is satisfied that the applicant has complied with requirements of (2A) and (2B).
- 84O(3A) If –
 - (a) The offender is disqualified from obtaining a driver licence or learner permit; or
 - (b) The offender's driver licence or learner permit is suspended-
For a period longer than the period of impoundment or immobilisation, the Magistrates' Court must not consider any exceptional hardship caused to the offender.
- 84O(3B) The Magistrates' Court must not make an order on the grounds of exceptional hardship relating to the offender's employment unless the applicant satisfies the Court that-
 - (a) Driving the impounded motor vehicle is essential (not merely convenient) for the offender's employment; and
 - (b) No other transport to his or her place of employment is available to the offender; and
 - (c) The offender, after making reasonable enquiries, is unable to arrange for another person to drive the offender to his or her place of employment.
- 84O(3C) In determining whether to make an order, the Magistrates' Court must have regard to the safety of the public and the public interest in preventing the use of the motor vehicle that the Court considers is reasonably likely in all the circumstances to be used for further driving offences.

Road Safety Act 1986, Section 84ZQAD – Application for an order that a motor vehicle is not abandoned

This section only applies to motor vehicles to which a deeming notice (84ZQAC) has been given to an interested party indicating an intention to deem the motor vehicle abandoned pursuant to 84ZQAB.

- 84ZQAD(1) A person whose interests are substantially affected by the impoundment or immobilisation may apply for an order that the motor vehicle is not abandoned.
- 84ZQAD(2) this application may be made in conjunction with a Hardship (84O) or Application for variation of order (84ZA(1)).
- 84ZQAD(3) The court must not make an order unless satisfied the applicant has notified the CCP (Senior Officer VISU is the delegate), and must allow the CCP to be heard.
- 84ZQAD(5) the court must be satisfied that –
 - (a) The applicant has not in fact abandoned the vehicle
 - (b) The applicant has a genuine intention to collect or arrange the release of the vehicle within 2 months of the vehicle first becoming available for collection or release.

Interpretation (OIC VISU)

The intent of 84ZQAB is to provide timely disposal of uncollected motor vehicles, including motor vehicles that have not been collected solely because the owner is unable to pay, or has refused to pay, the impoundment fees (punitive element). Timely disposal of uncollected motor vehicles is essential to ensure the continued operation of the impoundment program (storage capacity).

Section 84ZQAB(3) is clear that once a motor vehicles vests in the Crown, all interests, rights, titles or claims in or to ownership or possession are acquitted. The vehicle is no longer impounded as it is property of the Crown.

It should not be possible for an applicant to repossess the vehicle by way of making an application pursuant to 84O or 84ZQAD after the vehicle has vested.

This section infers:

- an application pursuant to S84O (hardship) should only occur during the period between the date of impoundment until the date the motor vehicle vests in the Crown
- an application pursuant to 84ZQAD (not abandoned) should only occur during the period between date of deeming notice (84ZQAC) and the date the motor vehicle vests in the Crown.

However, 84ZQAD does not restrict when an application can be made after a deeming notice is given (ie. whether it can only be made prior to the motor vehicle vesting), so it is accepted by the OIC VISU that the issue of a 'motor vehicle is not abandoned' order made at any time prior to the vehicle being disposed rescinds the provisions of 84ZQAB (deeming a motor vehicle abandoned), therefore a vested vehicle reverts to being impounded or immobilised.